

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 41-010
Amendments to Title 5 of the Chickasaw Nation Code
(Initial Appearance)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for the District Court and desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature authorizes and approves that the provisions of this Resolution shall become effective upon publication in the Chickasaw Nation Code.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 5, Chapter 5, Article A, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red and deletions are stricken through):

“SECTION 5-501.4 INITIAL APPEARANCE.

A. — ~~**Initial Appearance.** Initial Appearance is the bringing of an accused person before the Court, informing him of the charge against him and of his rights, receiving his plea, and setting bail. Initial Appearance shall be held in open court upon the appearance of an accused in response to a Criminal Summons or Citation or, if the accused was arrested in response to a warrant and confined, within seventy-two (72) hours of the arrest, Saturdays, Sundays, and legal holidays excepted. If the accused is arrested without a warrant and confined, the arresting law enforcement officer must complete an Affidavit of Probable Cause to Make Warrantless Custodial Arrest and present it to a judicial officer within forty-eight (48) hours for determination of probable cause to detain the accused until arraignment is held.~~
(PR38-002, 11/20/2020; (PR41-004, 12/15/2023)

B. — ~~**Procedure at Initial Appearance.** Initial Appearance shall be conducted in the following order:~~

1. — ~~The Judge should request the Prosecutor to read the charges.~~

2. — The Prosecutor should read the entire complaint, deliver a copy to the Defendant unless he has previously received a copy thereof, and state the minimum and maximum authorized punishment.

3. — The Judge should determine that the accused understands the charge against him and explain to the Defendant that he has the following rights:

- a. — the right to remain silent;
- b. — the right to be tried by a jury upon request; and
- c. — the right to consult with an attorney prior to disposition of the case.

4. — When advising a Defendant of his right to obtain counsel, the Judge shall also advise the Defendant that he may hire a private attorney or request court-appointed counsel. Requests for court-appointed counsel shall be made on a form devised by the Court for that purpose. If the Defendant shows his indigence, counsel will be appointed.

5. — The Judge should then ask the Defendant whether he wishes to plead guilty, *nolo contendere*, or not guilty.

— **C. — Receipt of Plea at Initial Appearance.** The Defendant shall plead guilty, *nolo contendere*, or not guilty to the offense charged. A Defendant may change his plea at any time up to the disposition of the case.

— 1. — If the Defendant refuses to plead, the Judge shall enter a plea of not guilty for him.

— 2. — If the Defendant pleads not guilty, the Judge shall set a trial date and conditions for bail prior to trial.

— 3. — If the Defendant pleads *nolo contendere* or guilty, the Judge shall question the Defendant personally to determine that he understands the nature of his action, the rights that he is waiving, and that his action is voluntary. The Judge may refuse to accept a guilty plea and enter a plea of not guilty for him. If the guilty plea is accepted, the Judge may immediately sentence the Defendant or order a sentencing hearing.

— 4. — A Defendant may change his plea at any time up to the disposition of the case.
(PR21-019, 5/21/04)

A. Initial Appearance. Initial Appearance is the bringing of an accused person before the Court, informing them of the charge(s) against them and of their rights, receiving their plea and setting bail. Initial Appearances shall be held in open court wherein the accused person may appear in-person or by video or audio conference technology, as approved by the District Court. If the accused was arrested in response to a warrant and confined, the Initial Appearance shall occur within seventy-two (72) hours

of the arrest, Saturdays, Sundays and legal holidays excepted. If the accused is arrested without a warrant and confined, the arresting law enforcement officer must complete an Affidavit of Probable Cause to Make Warrantless Custodial Arrest and present it to a judicial officer within forty-eight (48) hours for determination of probable cause to detain the accused until arraignment is held. The Court shall maintain a record of all Initial Appearances in conformity with 5 § 5-202.13.

B. Procedure at Initial Appearance. Unless waived by the Defendant, the Initial Appearance shall be conducted in the following order:

1. The Court shall ascertain whether the identifying information of the accused person, as indicated in the caption of the complaint, is accurate and correct. The Court or prosecutor should read all charge(s) set forth in the complaint alleged against the accused, inclusive of the minimum and maximum punishment allowed by law. The Court shall ensure that the Office of the Prosecutor has provided a true and accurate copy of the Complaint to the Defendant.
2. The Court should determine that the accused understands the nature of the charge(s) alleged against him and shall explain to the Defendant that he or she has the following rights:
 - a. The Defendant is presumed to be innocent of all charges.
 - b. That the Chickasaw Nation bears the burden to establish the Defendant's guilt of the alleged offenses beyond a reasonable doubt.
 - c. The Defendant has the right to remain silent and the right against self-incrimination.
 - d. The Defendant is entitled to a speedy and public trial. The Defendant has the right to request a trial before a jury comprised of six (6) persons for all offenses in which incarceration is a possible punishment.
 - e. The right to hear, see, and confront all witnesses called to testify against him.
 - f. The right to present evidence on his own behalf and the right to compel witnesses to appear before the Court to testify on his own behalf.
 - g. The right to consult with an attorney prior to the disposition of the case. The right to have an attorney represent the Defendant at all stages of the case; and, for all offenses in which incarceration is a possible punishment, the right to request a court-appointed attorney if the defendant is determined to be indigent by the Court.
 - h. The right to file a *Writ of Habeas Corpus* with the Federal District Court to determine the legality of the Chickasaw Nation's detention under 25 U.S.C. §1303.
3. The Defendant should be advised that requests for court-appointed counsel shall be made on a form approved by the District Court for that purpose. If the Court determines that the Defendant is indigent, a licensed attorney will be appointed to represent the Defendant.

C. Receipt of Plea at Initial Appearance. Once the Defendant has been properly advised of all rights afforded to him under the law, as set forth above, the Court should inquire whether the Defendant desires to enter a plea of not guilty, *nolo contendere*, or guilty.

1. If the Defendant refuses to plead, the Court shall enter a plea of not guilty on his behalf.
2. If the Defendant is uncertain how to plead, the Court shall enter a plea of not guilty on his behalf.
3. If the Defendant pleads not guilty, the Court shall set a future hearing date, affix bail for bailable offenses, and set any special conditions for bail prior to trial.

4. If the Defendant pleads *nolo contendere* or guilty, the Court shall conduct an inquiry to determine the following:
 - a. The Defendant understands the nature of the charges and the applicable range of punishment for each offense and that the Court may impose sentencing within the range of punishment for each offense, as set forth by law;
 - b. That by entering a plea of *nolo contendere* or guilty, the Defendant is waiving all rights, as set forth above;
 - c. That the Defendant desires to enter such plea voluntarily without coercion.
5. If the Court accepts the plea of *nolo contendere* or guilty, the Court may impose sentencing in conformity with 5 § 5-701.2 *et seq.*
6. If the Defendant desires to enter a plea of *nolo contendere* or guilty to a felony offense or to an enhanceable misdemeanor offense, the Court shall cause a verbatim record to be made of the plea by digital, electronic, or stenographic means, as approved by the District Court in conformity with 5 § 5-202.13 *et seq.*, unless expressly waived by the Defendant and the Chickasaw Nation.”

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on May 17, 2024, by a vote of 11 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAY 17 2024

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 41-010
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(Initial Appearance)

Explanation:

This resolution revises the existing District Court Rules and Procedures regarding Initial Appearances.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature